

Sidharth Kumar Pandey v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 November 2024 · 2024:AHC:185163-DB · Writ-C No. 37933 of 2024 · **Writ disposed; representation to be decided within three weeks.**

HEADNOTE

Writ challenging a 9 May 2024 bill and a load rise from 4 KW to 10 KW, said to breach clause 6.9 of the U.P. Electricity Supply Code, 2005, and seeking conversion from LMV-2 to LMV-1 under clause 3.3, was disposed of. Respondent no. 2 must decide the representation dated 10 October 2024 expeditiously, preferably within three weeks of a certified copy being filed.

FACTUAL SUMMARY

Sidharth Kumar Pandey and another, consumers of Purvanchal Vidyut Vitran Nigam Ltd., complained that between 9 April and 9 May 2024 the licensee raised their load from 4 KW to 10 KW and issued a bill dated 9 May 2024 without complying with clause 6.9 of the U.P. Electricity Supply Code, 2005. They also asked that the connection be changed from LMV-2 to LMV-1 under clause 3.3. By the hearing they had already filed a representation dated 10 October 2024.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.9

Time-bound decision of representation against load enhancement and bill

HOLDING

Where a representation dated 10 October 2024 is already pending against enhancement of load from 4 KW to 10 KW and a bill dated 9 May 2024 alleged to breach clause 6.9, the writ is disposed of by directing respondent no. 2 to decide that representation expeditiously, preferably within three weeks of a certified copy being filed. The Court does not quash the bill or order conversion of the connection. ¶ 3-4

PRINCIPLE TAGS

clause-6.9-representation-time-bound-decision The Court left the clause 6.9 grievance to the representation already filed on 10 October 2024 and directed respondent no. 2 to decide it preferably within three weeks of receiving a certified copy. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL DATED 9 MAY 2024 AND THE ENHANCEMENT OF LOAD FROM 4 KW TO 10 KW BETWEEN 9 APRIL 2024 AND 9 MAY 2024 VIOLATED CLAUSE 6.9.

Left to respondent no. 2 on the representation dated 10 October 2024. ¶ 2-4

NOT DECIDED — WHETHER THE CONNECTION MUST BE CONVERTED FROM LMV-2 TO LMV-1 UNDER CLAUSE 3.3.

The mandamus was not granted; the request remains with the pending representation. ¶ 2-4